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AS AMENDED

By: Rader and Pugh of the
Senate

Hasenbeck of the House

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

Section 6-190. A. The board of education of each school district shall employ and contract in writing, as required in Section 6-101 of this title, only with persons certified to teach by the State Board of Education in accordance with the Oklahoma Teacher Preparation Act, except as otherwise provided for by Section 6-101 of this title and by other law.

B. The Board shall issue a certificate to teach to any person
who:

1 1. Has successfully completed the teacher education program
2 required by the Commission for Educational Quality and
3 Accountability;

4 2. Has graduated from an accredited institution of higher
5 education that has approval or accreditation for teacher education;

6 3. Has met all other requirements as may be established by the
7 Board;

8 4. Has made the necessary application and paid the competency
9 examination fee in an amount and as prescribed by the Commission;

10 5. Has successfully completed the competency examination
11 required in Section 6-187 of this title; and

12 6. Beginning November 1, 2001, has on file with the Board a
13 current Oklahoma criminal history record from the Oklahoma State
14 Bureau of Investigation as well as a national criminal history
15 record check as defined in Section 150.9 of Title 74 of the Oklahoma
16 Statutes. Upon receipt of the Oklahoma criminal history record, the
17 Board may issue a temporary certificate which shall be effective
18 until receipt of the national fingerprint-based criminal history
19 record. The person applying for a certificate shall be responsible
20 for the cost of the criminal history records.

21 C. The Board shall issue a certificate to teach to any person
22 who:

23 1. Holds an out-of-state certificate and meets the requirements
24 set forth in subsection G of this section;

1 2. Holds certification from the National Board for Professional
2 Teaching Standards;

3 3. Holds an out-of-country certificate and meets the
4 requirements set forth in subsection F of this section; or

5 4. Has successfully completed a competency examination used in
6 the majority of other states or comparable customized exam and meets
7 the requirements set forth in subsection H of this section.

8 D. Beginning July 1, 2004, any person applying for initial
9 Oklahoma certification shall have on file with the Board a current
10 Oklahoma criminal history record from the Oklahoma State Bureau of
11 Investigation as well as a national criminal history record check as
12 defined in Section 150.9 of Title 74 of the Oklahoma Statutes. Upon
13 receipt of the Oklahoma criminal history record, the Board may issue
14 a temporary certificate which shall be effective until receipt of
15 the national fingerprint-based criminal history record. The person
16 applying for a certificate shall be responsible for the cost of the
17 criminal history records.

18 E. Any person holding a valid certificate, issued prior to
19 January 1, 1997, shall be a certified teacher for purposes of the
20 Oklahoma Teacher Preparation Act, subject to any professional
21 development requirements prescribed by the Oklahoma Teacher
22 Preparation Act or by the State Board of Education.

23 F. 1. The Board shall issue a certificate to teach to a person
24 who holds a valid out-of-country certificate and meets any

1 requirements established by the Board. The certificate to teach
2 shall only be for those subject areas and grade levels most closely
3 aligned to the subject areas and grade levels recognized on the out-
4 of-country certificate.

5 2. A person who meets the requirements of paragraph 1 of this
6 subsection shall not be required to take any competency examinations
7 in those subject areas and grade levels most closely aligned to the
8 subject areas and grade levels recognized on the out-of-country
9 certificate.

10 3. A person who meets the requirements of paragraph 1 of this
11 subsection shall have on file with the Board a current Oklahoma
12 criminal history record check from the Oklahoma State Bureau of
13 Investigation as well as a national criminal history record check as
14 defined in Section 150.9 of Title 74 of the Oklahoma Statutes. Upon
15 receipt of the Oklahoma criminal history record check, the Board may
16 issue a temporary certificate which shall be effective until receipt
17 of the national fingerprint-based criminal history record check.
18 The person applying for a certificate shall be responsible for the
19 cost of the criminal history record checks.

20 4. The Board shall promulgate rules establishing a process by
21 which out-of-country certificates will be reviewed and evaluated for
22 purposes of awarding a certificate to teach pursuant to this
23 subsection.

24

1 G. 1. The Board shall issue a certificate to teach to a person
2 who holds a valid out-of-state certificate. The certificate to
3 teach shall only be for those subject areas and grade levels most
4 closely aligned to the subject areas and grade levels recognized on
5 the out-of-state certificate.

6 2. A person who meets the requirements of paragraph 1 of this
7 subsection shall not be required to take any competency examinations
8 in those subject areas and grade levels most closely aligned to the
9 subject areas and grade levels recognized on the out-of-state
10 certificate.

11 3. A person who meets the requirements of this subsection shall
12 have on file with the Board a current Oklahoma criminal history
13 record check from the Oklahoma State Bureau of Investigation as well
14 as a national criminal history record check as defined in Section
15 150.9 of Title 74 of the Oklahoma Statutes. Upon receipt of the
16 Oklahoma criminal history record check, the Board may issue a
17 temporary certificate which shall be effective until receipt of the
18 national fingerprint-based criminal history record check. The
19 person applying for a certificate shall be responsible for the cost
20 of the criminal history record checks.

21 H. 1. The Board shall issue a certificate to teach to a person
22 who has successfully completed a competency exam used in a majority
23 of the other states. The certificate to teach shall only be for
24

1 those subject areas and grade levels that correspond with a
2 certification area used in Oklahoma.

3 2. A person who meets the requirements of paragraph 1 of this
4 subsection shall have on file with the Board a current Oklahoma
5 criminal history record check from the Oklahoma State Bureau of
6 Investigation as well as a national criminal history record check as
7 defined in Section 150.9 of Title 74 of the Oklahoma Statutes. Upon
8 receipt of the Oklahoma criminal history record check, the Board may
9 issue a temporary certificate which shall be effective until receipt
10 of the national fingerprint-based criminal history record check.
11 The person applying for a certificate shall be responsible for the
12 cost of the criminal history record checks.

13 I. 1. The Board may establish new levels of teacher
14 certificates: advanced, lead, and master. Each level shall have a
15 ~~salary increase requirement~~ stipend paid with state dollars from the
16 lottery funds as provided in Section 713 of Title 3A of the Oklahoma
17 Statutes. The advanced certificate shall include a ~~salary increase~~
18 stipend of Three Thousand Dollars (\$3,000.00), the lead certificate
19 shall include a ~~salary increase~~ stipend of Five Thousand Dollars
20 (\$5,000.00), and the master certificate shall include a ~~salary~~
21 ~~increase~~ stipend of Ten Thousand Dollars (\$10,000.00).

22 2. A teacher who works in a school with an enrollment of forty
23 percent (40%) or more of students who are economically disadvantaged
24 as defined in Section 18-109.5 of this title or a school district

1 with an enrollment of fewer than one thousand students shall be paid
2 a one-time award in addition to the ~~salary increases~~ stipends
3 provided in paragraph 1 of this subsection:

- 4 a. One Thousand Five Hundred Dollars (\$1,500.00) for an
5 advanced certificate,
- 6 b. Two Thousand Five Hundred Dollars (\$2,500.00) for a
7 lead certificate, and
- 8 c. Five Thousand Dollars (\$5,000.00) for a master
9 certificate.

10 3. School districts may identify and designate the highest
11 quality teachers for advanced, lead, and master certificates.
12 Participating districts shall submit designation plans to the State
13 Department of Education for evaluation and approval. Districts
14 shall have local control and flexibility in determining how to
15 evaluate teachers and assign designations, but, at a minimum, the
16 designation system shall include a teacher observation, out-of-
17 classroom time, and a student performance component.

- 18 a. Teacher observation shall be based on the district's
19 selected Oklahoma Teacher and Leader Effectiveness
20 Evaluation System (TLE) evaluation tool or an
21 alternate method of evaluation; provided, the method
22 is evidenced-based. Alternate methods of evaluation
23 shall not replace the requirements of Section 6-101.16
24 of this title.

1 b. Each school district that elects to participate in
2 assigning advanced, lead, and master teacher
3 certificates shall include an out-of-classroom
4 component for its assigned teachers to allow for
5 professional growth opportunities while staying in the
6 classroom. How out-of-classroom time is allotted and
7 managed shall be determined by the school district and
8 submitted as part of its designation plan to the State
9 Department of Education for review and approval.

10 c. Student performance measures may be determined by the
11 district and may include, but shall not be limited to,
12 pre- and post-tests, summative or formative, and
13 portfolios. The school district application shall
14 show evidence of validity and reliability of the
15 measures.

16 Districts may use additional factors in determining which
17 teachers are eligible to receive a designation, such as student
18 surveys, teacher leadership responsibilities, teacher mentorship
19 responsibilities, family surveys, demonstration of district core
20 values, teacher peer surveys, and contributions to the broader
21 school community. No more than ten percent (10%) of each school
22 district's teachers may be designated as an advanced, lead, or
23 master teacher in any given school year.

1 4. If a school district chooses to participate in this program,
2 the state shall provide the ~~increased salary~~ stipend amounts
3 indicated for advanced, lead, and master certificates in paragraph 1
4 of this subsection ~~above the base pay~~.

5 5. School districts that designate teachers for advanced, lead,
6 and master certificates do not have to participate in annual TLE
7 evaluations for the designated teachers.

8 6. School districts may designate teachers for advanced, lead,
9 or master certificates two times per year, once prior to the
10 beginning of the school year, and once prior to the beginning of the
11 second semester. Teachers statewide who receive these designations
12 shall be placed in professional development cohorts and provided
13 additional training opportunities from the State Department of
14 Education.

15 7. After initial approval by the State Department of Education,
16 the Department shall review and validate each participating school
17 district's teacher evaluation system biennially.

18 8. The State Department of Education shall annually report the
19 school districts participating in the program, the number of
20 advanced, lead, and master certificates awarded, and the total
21 amount in state funding that was distributed to teachers from the
22 Teacher Empowerment Revolving Fund created in Section 6-190.2 of
23 this title.
24

1 9. The selection criteria; designation of advanced, lead, or
2 master teachers; and any associated ~~salary increases~~ stipend amounts
3 shall not be subject to collective bargaining.

4 10. Stipends provided pursuant to this subsection shall not be
5 included in the calculation of the teacher's salary for purposes of
6 meeting the district or statutory minimum salary schedule or for
7 purposes of calculating Teachers' Retirement System of Oklahoma
8 contributions or benefits.

9 J. The State Board of Education shall adopt rules to implement
10 a renewal schedule and associated fees for advanced, lead, and
11 master teaching certificates. The rules shall allow a teacher that
12 no longer meets the requirements of an advanced, lead, or master
13 teaching certificate to make application for the standard teaching
14 certificate.

15 K. The terms of the contracts issued to those holding advanced,
16 lead, and master teaching certificates shall include the following:

17 1. Advanced: an additional five (5) days to be used to
18 strengthen instructional leadership. A person with an advanced
19 teaching certificate shall receive an annual ~~salary increase~~ stipend
20 of Three Thousand Dollars (\$3,000.00) or the district's daily rate
21 of pay, whichever is higher, in addition to the salary for which the
22 teacher qualifies pursuant to Section 18-114.15 of this title. This
23 ~~increase~~ stipend shall be funded by state dollars from the lottery
24 funds as provided in Section 713 of Title 3A of the Oklahoma

1 Statutes and shall be paid ~~as regular annual compensation~~ directly
2 to teachers through school districts;

3 2. Lead: an additional ten (10) days to be used to strengthen
4 instructional leadership. A person with a lead teaching certificate
5 shall receive an annual ~~salary increase~~ stipend of Five Thousand
6 Dollars (\$5,000.00) or the district's daily rate of pay, whichever
7 is higher, in addition to the salary for which the teacher qualifies
8 pursuant to Section 18-114.15 of this title. This ~~increase~~ stipend
9 shall be funded by state dollars from the lottery funds as provided
10 in Section 713 of Title 3A of the Oklahoma Statutes and shall be
11 paid ~~as regular annual compensation~~ directly to teachers through
12 school districts; and

13 3. Master: an additional fifteen (15) days to be used to
14 strengthen leadership. A person with a master teaching certificate
15 shall receive an annual ~~salary increase~~ stipend of Ten Thousand
16 Dollars (\$10,000.00) or the district's daily rate of pay, whichever
17 is higher, in addition to the salary for which the teacher qualifies
18 pursuant to Section 18-114.15 of this title. This ~~increase~~ stipend
19 shall be funded by state dollars from the lottery funds as provided
20 in Section 713 of Title 3A of the Oklahoma Statutes and shall be
21 paid ~~as regular annual compensation~~ directly to teachers through
22 school districts.

23 If a person with an advanced, lead, or master teaching
24 certificate changes school districts during the life of the

1 certificate, the terms of the contracts required in this subsection
2 shall be subject to approval by the new employing school district.

3 L. Beginning in the 2022-2023 school year, the Department shall
4 make the teaching certificates provided for in this section
5 available for any person who has received a recommendation from his
6 or her school district and who meets the eligibility criteria as
7 outlined in each school district's teacher evaluation system
8 provided for in subsection I of this section.

9 M. The funding necessary for the administration of this section
10 shall be provided from the Teacher Empowerment Revolving Fund
11 created in Section 6-190.2 of this title. If funding for the
12 administration of the teaching certificates listed in subsection I
13 is not available, the Department shall not be required to fulfill
14 the requirements listed in subsections I, K, and L of this section.

15 N. The State Board of Education shall promulgate rules to
16 implement the provisions of Section 6-180 et seq. of this title.

17 SECTION 2. AMENDATORY Section 2, Chapter 359, O.S.L.
18 2022, as amended by Section 2, Chapter 122, O.S.L. 2024 (70 O.S.
19 Supp. 2024, Section 6-190.2), is amended to read as follows:

20 Section 6-190.2. A. There is hereby created in the State
21 Treasury a revolving fund for the State Department of Education to
22 be designated the "Teacher Empowerment Revolving Fund". The
23 revolving fund shall be a continuing fund, without legislative
24 appropriation, not subject to fiscal year limitations, and shall be

1 under the control and management of the State Department of
2 Education. Expenditures from the Teacher Empowerment Revolving Fund
3 shall be budgeted and expended as provided for in subsection B of
4 this section.

5 B. The State Department of Education shall utilize the funds
6 for the program outlined in Section 6-190 of this title. Funding
7 shall be allocated to school districts to provide the ~~increased~~
8 ~~salary~~ stipend amounts indicated for advanced, lead, and master
9 certificates as provided for in subsection I of Section 6-190 of
10 this title on a first-come, first-served basis until the cash is
11 exhausted for the school year.

12 SECTION 3. This act shall become effective July 1, 2025.

13 SECTION 4. It being immediately necessary for the preservation
14 of the public peace, health, or safety, an emergency is hereby
15 declared to exist, by reason whereof this act shall take effect and
16 be in full force from and after its passage and approval.

17 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
18 March 5, 2025 - DO PASS
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